

SETTLEMENT AGREEMENT AND RELEASE

1. This Settlement Agreement and Release ("Agreement") is executed by and on behalf of JIMMY HU ("Releasor"), as lessee and user of a certain 2024 IONIQ 5 SEL AWD (the "Subject Vehicle"), bearing VIN KM8KNDDF9RU253237. In consideration of payment by Hyundai Motor America, Releasor does for himself or herself and each and all of his or her representatives, employees, successors and assigns, hereby release and discharge Hyundai Motor America, Hyundai Motor Company, their past, present or future stockholders, officers, directors, principals, representatives, insurers, subsidiaries, manufacturers, distributors, dealerships, suppliers, affiliates, partners, predecessors, successors, heirs, executors, assigns, associates, attorneys, agents, servants, employees, and all other persons, firms, or corporations, who are or might be claimed to be liable (collectively, "Releasees"), of and from any and all claims, causes of action, demands, rights, attorney's fees, costs, and damages related to the Subject Vehicle (hereinafter referred to as "Claims").

2. In consideration for this Agreement and in full satisfaction of all Claims, Hyundai Motor America agrees to the following condition:

(a) Hyundai Motor America agrees to pay to Releasor a total of \$4000.00.

3. It is also expressly agreed that:

- (a) Hyundai Motor America will continue to honor any remaining terms of the Subject Vehicle's limited warranties as set forth in the Subject Vehicle's Owner's Handbook and Warranty Information;
- (b) Releasor fully understands that this is a final settlement and disposition of all disputes as to the legal liability against Releasees for and as to the released Claims. Releasor realizes that Releasor may have other claims regarding the allegations made above of which Releasor is not currently aware and expressly waives those claims;
- (c) Neither Hyundai Motor America's payment of the consideration recited in Paragraph (2), nor the negotiations preliminary to the execution of this Agreement, shall be considered an admission of liability or wrongdoing by Releasees to any of the claims or causes of actions alleged in or to be inferred from allegations set forth in the Claims indicated in Paragraph (1) above;
- (d) Releasor represents and warrants that Releasor has carefully read and fully understands all of the provisions of this Agreement and that Releasor is entering into this Agreement voluntarily;
- (e) Releasor represents and warrants that Releasor is entitled to give a full and complete release of the Claims that are the subject hereof;
- (f) Releasor has not assigned or otherwise transferred any interest in any Claims that are the subject hereof;
- (g) Releasor shall not at any time hereafter commence, maintain or prosecute, or cause, encourage or advise to be commenced, maintained or prosecuted any action, suit, proceeding or claim based in whole or in part upon or arising out of or in any way connected with any of the Claims released herein;
- (h) If any action or proceeding is brought by any third party based in whole or in part upon or arising out of or in any way connected with any other Claims released herein, Releasor

shall indemnify and hold Releasees harmless from any and all such claims, demands, causes of action, damages and liabilities, including court costs and attorneys' fees arising in connection therewith;

- (i) As consideration for the payment described in Paragraph 2 above, Releasor agrees to keep strictly confidential and not to disclose in any manner to any person, entity, website, blog or social networking site: financial terms of this settlement other than, should the need arise, a Court of Law and, on a need-to-know basis, Releasor's spouse, tax consultants, and attorneys;
- (j) Releasor specifically waives section 1542 of the California Civil Code, as well as any similar law of any state or territory of the United States, which states, "A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party;"
- (k) If any provision of this Agreement or the application thereof is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder provisions or applications of this Agreement shall remain in full force and effect and shall in no way be affected, impaired, or invalidated;
- (l) No promise, agreement, statement, or representation except as expressed in this Agreement has been made to or been relied upon by Releasor and that this document contains the entire agreement between Releasor and Hyundai Motor America.

Intending to be legally bound by the terms of this Agreement, the undersigned has affixed their signatures on this _____ day of _____, 2025.

By: _____
JIMMY HU

Sworn to and subscribed before me this _____ day of _____, 2025.

By: _____
Notary Public